



### CHAPTER cix.

An Act to authorise the mayor aldermen and burgesses of the borough of Reading to acquire the undertaking of the Tilehurst Pangbourne and District Water Company Limited to authorise the said mayor aldermen and burgesses to execute waterworks and street works and for other purposes: A.D. 1930.  
[10th July 1930.]

**W**HEREAS the borough of Reading (in this Act called "the borough") in the county of Berks is under the management and local government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation"):

And whereas the Corporation are the owners of waterworks for supplying and are supplying water within and without the borough:

And whereas the Tilehurst Pangbourne and District Water Company Limited (in this Act called "the company") were registered under the Companies Acts 1862 to 1890 for the purposes of constructing and maintaining waterworks and supplying water:

And whereas the company are supplying water in part of the borough and in other places in the neighbourhood thereof under the powers of the Tilehurst Pangbourne and District Water Orders 1894 1896 1899 and 1901 and the Tilehurst Pangbourne and District Water Company Limited (Modification of Charges) Order 1922:

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And whereas the company have agreed with the Corporation for the transfer of their undertaking to the Corporation and it is expedient that the said undertaking should be transferred to and vested in the Corporation in the manner provided by this Act and that the agreement (a copy of which is set forth in the First Schedule to this Act) should be confirmed and that provision should be made for carrying it into effect:

And whereas the company have constructed certain waterworks in the parish of Pangbourne and it is expedient to sanction and confirm the construction of such works and to authorise the Corporation to utilise the same for the purposes of their water undertaking:

And whereas it is expedient to make provision for enabling the local authorities having jurisdiction within the limits for the supply of water by the company to purchase from the Corporation (subject to the limitations contained in this Act) the portions of the undertaking of the company which are within their respective districts:

And whereas the whole of the parish of Whitchurch in the rural district of Goring is within the limits of supply both of the company and of the South Oxfordshire Water and Gas Company and it is expedient to make provision for the supply of water in that parish as in this Act provided:

And whereas it is expedient to empower the Corporation to make and maintain the additional waterworks authorised by this Act and to make further provision in reference to their water undertaking:

And whereas it is expedient to empower the Corporation to execute the street works authorised by this Act and to make provision for the recovery of part of the cost thereof from the frontagers to such works:

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of revenue derived from their undertakings:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

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|                                                                              |         |
|------------------------------------------------------------------------------|---------|
| The construction of the waterworks authorised by this Act                    | £       |
|                                                                              | 135,748 |
| New mains replacements and extensions of mains and other waterworks purposes |         |
|                                                                              | 30,000  |
| The construction of the street works authorised by this Act                  |         |
|                                                                              | 14,500  |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been duly deposited with the clerk of the peace for the county of Berks and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

## PART I.

### PRELIMINARY.

1. This Act may be cited as the Reading Corporation Act 1930. Short title.

2. This Act is divided into Parts as follows :—

Division of  
Act into  
Parts.

Part I.—Preliminary.

Part II.—Purchase of undertaking of company.

Part III.—Waterworks.

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Part IV.—Water supply.

Part V.—Lands and street works.

Part VI.—Financial.

Part VII.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exception and modification—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

(2) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(b) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) section 83 (with respect to the yearly receipts and expenditure of the undertakers); and

(3) The Waterworks Clauses Act 1863.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Reading;

“The borough” means the county borough of Reading; A.D. 1930.

“The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“The company” means the Tilehurst Pangbourne and District Water Company Limited;

“The scheduled agreement” means the agreement dated the eighteenth day of January nineteen hundred and thirty and made between the company of the one part and the Corporation of the other part and set out in the First Schedule to this Act;

“The undertaking of the company” and “the date of transfer” have respectively the same meanings as in the scheduled agreement;

“The company’s enactments” means the Tilehurst Pangbourne and District Water Order 1894 the Tilehurst Pangbourne and District Water Order 1896 the Tilehurst Pangbourne and District Water Order 1899 the Tilehurst Pangbourne and District Water Order 1901 and so much of the Acts confirming those Orders respectively as relates to those Orders and the Tilehurst Pangbourne and District Water Company Limited (Modification of Charges) Order 1922;

“The existing limits” means the limits within which the Corporation are authorised to supply water immediately before the passing of this Act;

“The added limits” means the area added by this Act to the existing limits;

“The limits of supply” means the limits within which the Corporation are for the time being authorised to supply water;

“The water undertaking” means the water undertaking of the Corporation;

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—

“The Corporation undertakings” means the water undertaking the tramway undertaking and the markets undertaking of the Corporation;

“The Act of 1913” and “the Act of 1914” mean respectively the Reading Corporation Act 1913 and the Reading Corporation Act 1914;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“Statutory security” “statutory borrowing power” and “revenues of the Corporation” have respectively the meanings assigned to those expressions by section 3 (Interpretation) of the Act of 1913;

“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“The Minister” means the Minister of Health.

(3) In the construction of the provisions of the Lands Clauses Acts and of the Waterworks Clauses Acts 1847 and 1863 incorporated with this Act the expressions “the promoters of the undertaking” and “the undertakers” mean respectively the Corporation.

(4) For the purposes of this Act and of the enactments incorporated therewith the expression “the waterworks” includes the waterworks for the time being belonging to the Corporation by virtue of this Act.

## PART II.

### PURCHASE OF UNDERTAKING OF COMPANY.

Confirma-  
tion of  
scheduled  
agreement.

5.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the parties in writing under their respective common seals.

(2) The sale of the undertaking of the company shall be carried into effect by a deed which may be in the form set forth in the Second Schedule to this Act or to the like effect or in such other form as may be agreed between the company and the Corporation and on the execution of the deed by the company the undertaking of the company shall by virtue of the deed and this Act be transferred to and become vested in the Corporation and such transfer and vesting are referred to in this Act as "the transfer."

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6. The receipt in writing of three directors of the company for any money paid to the company shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Corporation are unable to obtain any such receipt from the directors of the company they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company.

Receipt for  
purchase  
money.

7.—(1) The debentures of the company outstanding at the date of transfer and the interest accruing thereon after that date shall thereafter continue to be a charge on the undertaking of the company in the hands of the Corporation to the same extent and with the same incidents as if this Act had not been passed but with the substitution of the Corporation for the company in respect of such debentures and the Corporation shall indemnify and hold harmless the company against any claims in respect thereof but not in respect of arrears of interest thereon (if any) due and payable or accruing thereon on the date of transfer.

As to  
company's  
debentures.

(2) (a) The Corporation may by agreement with the holder of any of the debentures of the company at any time substitute for the debenture or debentures so held by him any stock mortgage or other security of the Corporation or pay off the amount secured by such debentures and redeem the security with moneys raised

A.D. 1930. — under the powers of this Act and the holder of any such debentures whether or not he is a trustee or under any disability may agree with the Corporation to accept any stock mortgage or other security of the Corporation in lieu of money in consideration for his debenture or debentures.

(b) In any such case the Corporation may make such reasonable payment as they may think fit to the holder of any such debentures for his consent or for otherwise compensating him for the substitution or the payment off or redemption of his security and any such payment may be either by money or by stock mortgage or other security of the Corporation or partly by one and partly by the other.

Substituted  
securities to  
be held in  
same rights.

8.—(1) Any sums of cash paid to the holders of shares in the capital of the company or of debentures of the company and any stock mortgage or other security substituted for any debenture or debentures of the company in pursuance of this Act or of the scheduled agreement shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the shares or debentures were held immediately before such substitution and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the shares or debentures and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the sum of cash or substituted stock mortgage or other security.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific number of debentures of the company or to a specific number or nominal amount of shares in the capital of the company shall be held to apply to the stock mortgage or other security of the Corporation or sum of cash which under the provisions of this Act is issued or (in the case of any sum of cash) paid in substitution for such specific number of debentures of the company or such specific number or nominal amount of shares in the capital of the company.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the

stock mortgage or other security of the Corporation so issued to them or sums of cash so paid to them in pursuance of the provisions of this Act for the shares in the capital of the company or debentures of the company held by them and may hold dispose of or otherwise deal with such stock mortgage or other security of the Corporation or sums of cash in all respects as they might have held disposed of or otherwise dealt with the shares or debentures of the company for which the same are substituted.

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9. Subject to the provisions of this Act and of the scheduled agreement all mortgages bonds charges debts and liabilities upon or affecting the undertaking of the company or due from or payable by the company which at the date of transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and if at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

Liabilities to be defrayed by company.

10. Subject to the provisions of this Act and of the scheduled agreement all agreements conveyances contracts deeds and other instruments entered into or made with or by the company and in force at the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto.

Contracts with company to be binding on Corporation.

11. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Books &c. to remain evidence.

12.—(1) The company's enactments shall as from the date of transfer be repealed except so far as may be necessary to give effect to the provisions of this Act and

Partial repeal of company's enactments.

A.D. 1930. — except the provisions of those enactments which are referred to in the Third Schedule to this Act. Provided that notwithstanding such repeal all arrears of rates rents and charges payable under the provisions of the company's enactments and all rates rents and charges payable thereunder in respect of any period before the date of transfer may be sued for collected and recovered by the Corporation in the same manner in all respects as the same could have been sued for collected and recovered by the company if this Act had not been passed.

(2) Subject to the provisions of this Act the Corporation shall as from the date of transfer have the powers and rights and be subject to the obligations of the provisions which are set out in the Third Schedule to this Act as if the Corporation were named in those provisions instead of the company :

Provided that within the borough the provisions of section XXXI (Rate at which water is to be supplied for domestic purposes) and section XXXII (What shall be deemed domestic purposes) of the Reading Waterworks Act 1851 as amended by section 26 (Rates for supply of water) of the Reading Waterworks Act 1868 shall subject to the provisions of this Act apply instead of the provisions of sections 20 (Rates for supply for domestic purposes) and 21 (Rates for waterclosets and baths) of the Tilehurst Pangbourne and District Water Order 1894 as modified by the Tilehurst Pangbourne and District Water Company Limited (Modification of Charges) Order 1922.

(3) As from the date of transfer subsection (5) of article XI (Local Acts and Orders) of the Reading (Extension) Order 1911 shall be repealed.

Winding up  
of company.

. **13.**—(1) From and after the date of transfer the company shall subsist only for the purpose of distributing their assets and winding up their affairs and carrying into effect the purposes of this Part of this Act so far as they relate to the company and the directors of the company who are in office at the date of transfer or the survivor or survivors of such directors shall continue without re-election to hold office and such directors or a majority of them or in the event of a liquidator being duly appointed such liquidator shall have full power and authority to take all necessary proceedings in respect of

the company for carrying into effect the several purposes of this Part of this Act. A.D. 1930.

(2) If the number of directors of the company be reduced by death resignation or otherwise below two before the completion of the winding up of the company or the appointment of a liquidator thereof the continuing director shall from time to time choose any person who immediately prior to the date of transfer was a shareholder of the company to fill any vacancy so caused.

(3) Forthwith after the date of transfer the directors of the company or such liquidator as aforesaid shall proceed to wind up the affairs of the company in accordance with the provisions of the Companies Act 1929 and if the directors shall before such date have delivered to the Registrar of Companies the statutory declaration of solvency which is referred to in section 230 of the Companies Act 1929 the company shall be deemed as at the date of transfer to have passed a special resolution for the voluntary winding up thereof and such winding up shall be conducted according to the provisions of the last-mentioned Act applicable to a member's voluntary winding up.

14. The Corporation shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Corporation shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

There shall be paid to the registrar by the Corporation on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than a memorandum of association or the abstract required to be delivered to the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

15.—(1) On the date of transfer Frederick William Talbot the managing director of the company his executors administrators or assigns shall sell and convey to the Corporation and the Corporation shall purchase Sale of certain lands by managing director of company to Corporation.

A.D. 1930. the fee simple in possession of and in the following  
— lands (namely):—

All that piece of land containing an area of seventeen acres or thereabouts forming part of the field or close numbered 169 on the  $\frac{1}{2500}$  Ordnance map of Oxfordshire (parish of Whitchurch) sheet LV.8 (edition of 1912) and having a frontage of one thousand five hundred and forty feet or thereabouts to the public road leading from Whitchurch to Crays Pond and Woodcote which said piece of land is bounded on the east by the said public road on the north by land belonging or reputed to belong to Harry Aldridge and on the west by lands forming or reputed to form part of the Coombe Park Estate.

(2) As consideration for the said sale and conveyance the Corporation shall make to the said Frederick William Talbot his executors administrators or assigns the payments which are referred to in clause 17 of the scheduled agreement.

Sale of  
portions of  
undertaking  
to other  
local  
authorities.

**16.**—(1) If at any time after the date of transfer any local authority whose district is beyond the borough but as to the whole or any part thereof within the added limits shall give not less than one year's notice in writing to the Corporation of their desire to purchase such portion of the water undertaking as is contained within the district of such authority (except any pumping stations and reservoirs and except any aqueducts mains pipes or other works or apparatus which shall be necessary for supplying with water any area not comprised within the district of such authority) and shall obtain the consent of the Minister to such purchase the Corporation shall sell and such authority shall purchase the portion of the water undertaking (except as aforesaid) within the district of such authority at such price and upon and subject to such terms and conditions as may be agreed upon between the Corporation and such authority or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking"

shall mean the local authority by whom the notice has been given under this section and the expression "lands" shall mean the portion of the water undertaking to be purchased. A.D. 1930.

(2) Any such purchase shall be deemed to be a purpose of the Public Health Act 1875.

(3) The Corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from the sale of land under this Act.

(4) After the completion of such purchase all obligations on the part of the Corporation to supply water within the district of the purchasing authority shall cease and determine except as provided by the next following section of this Act but the Corporation shall retain their powers in regard to the repair maintenance renewal and use of any works mains pipes and apparatus not comprised in the sale and the laying down of mains and the execution of works for the purposes of supplying water to areas not comprised within the district of the purchasing authority and of supplying water to that authority under the next following section of this Act.

(5) The local authorities referred to in subsection (1) of this section may combine for the purpose of exercising the powers and performing the obligations conferred and imposed upon them by this section and by the next following section of this Act.

**17.** As from the date of the completion of the purchase of any portion of the water undertaking under the last preceding section of this Act the Corporation shall supply to the local authority who shall have purchased such portion and that authority shall take from the Corporation all the water which that authority shall require for the supply of so much of their district as was comprised within the added limits and such water shall be supplied at a price and on and subject to terms and conditions to be determined unless otherwise agreed by an arbitrator appointed in default of agreement by the Minister and such price terms and conditions shall be open to revision every five years to be again determined in manner aforesaid. Sale in bulk to purchasing authorities.

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## PART III.

## WATERWORKS.

Power to  
maintain  
works  
supply  
water and  
amalgamate  
under-  
takings.

18.—(1) The Corporation may maintain repair renew alter enlarge and extend the pumping stations reservoirs mains pipes and other waterworks belonging to them by virtue of this Act and may use and employ the same for the purpose of taking intercepting and impounding water and may take intercept and impound any water which if this Act had not been passed might have been taken intercepted or impounded by the company under any of the provisions contained in the company's enactments or the enactments incorporated therewith and may sell and supply such water within the limits of supply.

(2) At any time after the date of transfer the Corporation may connect their existing waterworks and the waterworks authorised by this Part of this Act with the waterworks vested in them by virtue of this Act and with the waterworks the construction of which is sanctioned and confirmed thereby and the existing water undertaking of the Corporation and the undertaking of the company may be consolidated and carried on as one undertaking.

Confirma-  
tion of  
acquisition  
of lands.

19. The purchase or acquisition by the Corporation of the lands hereinafter described upon which the works authorised by the section of this Act of which the marginal note is "Power to make additional waterworks" are intended to be constructed is hereby sanctioned and confirmed and the said lands may be held and used by the Corporation for the purposes of the water undertaking. The lands above referred to contain an area of sixteen acres and thirty-three poles and are situate partly in the borough and partly in the parish of Tilehurst in the county of Berks and form part of the fields or closes numbered 418 470 471 and 472 on the  $\frac{1}{2500}$  Ordnance map of Berkshire sheet XXXVII-1 (edition of 1912) and have a frontage to the public road named City Road of one thousand one hundred feet or thereabouts and a frontage to the public road named Park Lane of two hundred feet or thereabouts which said lands are bounded on the north and west by City Road aforesaid on the east partly by land

belonging or reputed to belong to George Henry Bryant partly by land belonging to the Corporation and partly by Park Lane aforesaid on the south by land belonging or reputed to belong to Francis John Kernan Hilda Lilian Tynan Frederick John Parr and Harriet Phillips Turner and on the south-west by land belonging or reputed to belong to the said Harriet Phillips Turner. A.D. 1930.  
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**20.** The construction by the company of the works hereinafter described is hereby sanctioned and confirmed and such works shall be deemed to have formed part of the undertaking of the company and subject to the provisions of this Act the Corporation may maintain and from time to time repair renew alter enlarge extend or discontinue those works and may use and employ the same for the purpose of taking intercepting and impounding water and may continue to take intercept and impound any water which can be taken intercepted or impounded by such works The works hereinbefore referred to are situate in the parish of Pangbourne in the county of Berks and are— Power to maintain additional waterworks &c.

Work No. 1 The existing well or bore-hole pumping station and other buildings and machinery situate upon the lands belonging to the company which lands are bounded on the north by property now or formerly belonging to the Honourable Helen Elizabeth Swinnerton Macdonald on or towards the south partly by a narrow stream or ditch which runs into the river Pang and partly by land formerly belonging to the executors of George Boxall deceased on or towards the east by the said stream or ditch and on or towards the west by Tidmarsh Road;

Work No. 2 The existing water main or line of pipes commencing at the said well or bore-hole and terminating in the said pumping station;

Work No. 3 The existing main or line of pipes commencing at or near to the north-west corner of the said pumping station and terminating by a junction with the existing main of the company at the junction of Reading Road with Tidmarsh Road.

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Power to  
make  
additional  
waterworks.

**21.**—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works hereinafter described (that is to say) :—

Work No. 4 A service reservoir to be situate partly in the borough and partly in the parish of Tilehurst adjoining the westerly side of the existing Park Lane reservoir of the Corporation ;

Work No. 5 A water tower to be situate in the borough immediately to the south of the said Park Lane reservoir and in enclosure numbered 470 on the  $\frac{1}{2500}$  Ordnance map of Berkshire sheet XXXVII-1 (edition of 1912).

(2) The Corporation may upon lands acquired by them for the purposes of or in connection with the water undertaking whether under the provisions of this or any other Act make and maintain all such works and conveniences as they may consider necessary or convenient in connection with or subsidiary to the waterworks sanctioned and confirmed or authorised by this Act or the existing or authorised waterworks of the Corporation or works forming part of the undertaking of the company or for inspecting maintaining repairing cleansing managing working or using the same or any of them :

Provided that—

(a) Nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them ;

(b) Any electric apparatus shall be so made maintained and used as not to cause any interference with any telegraphic line belonging to or used by the Postmaster-General.

Limits of  
deviation  
for water-  
works.

**22.** In the construction of the waterworks authorised by this Part of this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections

to any extent not exceeding five feet either upwards or downwards. A.D. 1930.

**23.** If the works authorised by this Part of this Act and delineated on the deposited plans and sections are not completed within a period of ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed :

Period for  
completion  
of works.

Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant as and when occasion may require.

**24.** Subject to the provisions of this Act the Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act or of the water undertaking but (except with the consent of the Minister) the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed twenty acres and the Corporation may on all or any of such additional lands execute for the purposes of or in connection with their waterworks any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847 :

Power to  
purchase  
additional  
lands by  
agreement.

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking.

**25.** The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may erect or lay down for the purposes of the water undertaking :

Application  
of Water-  
works  
Clauses  
Act 1847.

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— Provided that any telephone or telegraph posts wires conductors or apparatus constructed laid down erected or maintained under the provisions of this section shall not be used for the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Discharge of  
water into  
streams.

**26.**—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir conduit line of pipes or other work of the Corporation the Corporation may cause the water in any such work to be discharged into any available stream watercourse or ditch.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

(3) The powers conferred by this section shall not be exercised so as to damage or injuriously affect the railways or works of any railway company.

Power to  
hold lands  
and exercise  
powers for  
protection  
of waters.

**27.**—(1) For the purpose of protecting any of their waters or waterworks against pollution nuisance encroachment or injury the Corporation may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Corporation may have acquired for the purposes of the water undertaking so long as they shall deem it necessary or expedient for those purposes :

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor without the approval of the Minister erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section as to the erection of buildings

shall not apply in respect of lands leased or sold by the Corporation or appropriated by them for purposes other than purposes of the water undertaking.

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(2) The Corporation may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Corporation or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are for the time being authorised to take.

**28.** The Corporation on selling any lands acquired by them in connection with the water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation  
of water  
rights &c.  
on sale.

**29.** The Corporation shall have and may exercise the powers which a local authority would have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the limits of supply shall be deemed to be the district of the Corporation Provided that the

Further  
powers in  
relation to  
water mains.

A.D. 1930. Corporation shall not exercise such powers through across or under any lands or property belonging to a railway company and used for the purposes of their undertaking without the consent of such company but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of such company or the Corporation.

Meters in  
streets to  
measure  
water or  
detect  
waste

**30.** Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus :

Provided that the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 :

Provided also that the Corporation shall not exercise the powers of this section in respect of any street or apparatus belonging to or maintained by a railway company without the previous consent of such company but such consent shall not be unreasonably withheld and any difference which may arise between such company and the Corporation as to whether such consent is in any case unreasonably withheld shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other.

For protec-  
tion of  
Berkshire  
County  
Council.

**31.** In executing the works and exercising the powers authorised by this Part of this Act the following provisions for the protection of the county council of the administrative county of Berks (in this section

called "the county council") shall unless otherwise agreed in writing between the Corporation and the county council have effect (that is to say) :—

A.D. 1930.

- (1) All mains pipes or other works to be laid down by the Corporation in or along any county road or in or upon or across any county bridge (which word shall in this section include bridge approaches) shall be laid down in such position in or at the side thereof and (if laid down under the metalled portion thereof) at such depth as the county council in writing under the hand of their clerk or surveyor may reasonably require :
- (2) The notice required by section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of any street or bridge shall (except in case of emergency as regards any such street or bridge) be not less than seven days instead of three days :
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall (except in case of emergency) be accompanied by a description of the proposed works in the case of any county road and by a section in the case of any county bridge and shall be delivered to the county council or their surveyor by the Corporation not less than fourteen days before they commence to open or break up any county road or interfere with any county bridge for the purpose of executing the works :
- (4) Nothing in this Act shall authorise the Corporation to interfere with the structural part of any county bridge without the consent of the county council under the hand of their clerk or surveyor which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine Provided that the county council shall not be entitled to require as a condition of giving their consent under this subsection the payment to them by the Corporation of any money other than the amount of any expenses which the county council may reasonably incur by reason or in consequence of any such interference as

A.D. 1930.  
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aforesaid but nothing in this proviso shall preclude the county council from requiring the Corporation as a condition of giving such consent as aforesaid to make good at the expense of the Corporation any damage caused by them to the structure of any such bridge aforesaid :

- (5) All works of the Corporation so far as they affect any county roads or county bridges shall be so executed by the Corporation as not (except in case of emergency) to stop the traffic and so far as reasonably practicable as not to impede or interfere with the traffic on any county road or over any county bridge and the Corporation shall not without the consent of the county surveyor open or break up at any one time a greater length than two hundred yards of any such road :
- (6) If any difference arises at any time between the county council and the Corporation touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by the arbitration of an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 and any statutory modification thereof shall apply to such arbitration :
- (7) The expression "county bridge" in this section shall include any bridge which carries a county road and for the maintenance of which the county council are responsible.

For pro-  
tection of  
Reading Gas  
Company.

**32.**—(1) Whenever in the exercise of the powers of this Part of this Act the Corporation shall desire to effect any alteration diversion or stopping up of any of the mains pipes valves plugs or other apparatus or works belonging to or under the control of the Reading Gas Company (in this section referred to as "the company") the Corporation shall give to the company not less than fourteen days' notice in writing of such desire and the company may (if they so desire) forthwith themselves

carry out such alteration diversion or stopping up to the satisfaction of the Corporation and the reasonable expenses incurred by the company in so doing shall be repaid to the company by the Corporation. Provided that if the company fail within such period of fourteen days so to carry out such alteration diversion or stopping up the Corporation may themselves proceed to carry out the same with all reasonable expedition under the superintendence (if given) and to the reasonable satisfaction of the company. A.D. 1930.

(2) Any dispute arising between the Corporation and the company under the provisions of subsection (1) of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

#### PART IV.

##### WATER SUPPLY.

**33.**—(1) The limits within which the Corporation may supply water shall as from the date of transfer be extended so as to include the following areas (in this Act called “the added limits”) (namely):— Extension of limits of supply.

In the county of Berks—

- (a) So much of the borough as does not lie within the existing limits;
- (b) The parishes of Purley Sulham Tilehurst and Tidmarsh in the rural district of Bradfield;
- (c) The parish of Pangbourne in the rural district of Bradfield except so much of that parish as lies to the west of an imaginary straight line drawn from the point where the boundary of the parish crosses the south-west fence of Hawe’s Copse to the point where the footpaths from Croft Shaw and Lower Franklin’s Copse intersect at the west side of Bowram’s Shaw and to the north-west of an imaginary straight line drawn from the last-named point to the point where the footpath from Bere Court

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enters Wellfield Grove and to the north of an imaginary straight line drawn from the last-named point to the point where the boundary of the parish crosses the road which runs in a north-easterly direction through Williams Heath Plantation to Pangbourne;

(d) The parish of Englefield in the rural district of Bradfield except so much of that parish as lies to the south-east of the northern boundary fence of the Newbury and Hungerford branch railway of the Great Western Railway Company;

(e) The parish of Theale in the rural district of Bradfield except so much of that parish as lies to the south and south-east of the northern boundary fence of the Newbury and Hungerford branch railway of the Great Western Railway Company.

In the county of Oxford—

So much of the parish of Whitchurch as lies to the south of an imaginary line commencing at the point where the north-western boundary of the parish leaves the river Thames and proceeding along that boundary to the point where it crosses the footpath leading from Hartslock Wood (which point is situate nine hundred and thirty feet or thereabouts from the said river) thence along the northern side of that footpath to its junction with the bridle road leading to Whitchurch Hill thence along the northern side of that bridle road thence across Whitchurch Hill in an easterly direction and along the eastern side thereof to the northern boundary of the Royal Oak public-house thence along the southern boundary of the enclosures numbered 154 and 153 on the  $\frac{1}{2500}$  Ordnance map of Oxfordshire sheet LV.8 (edition of 1912) to a point one hundred and ten feet or thereabouts north of the south-western corner of Firhill Plantation thence in a southerly direction along the western boundary and in an easterly direction along the southern boundary of that plantation and the southern boundary of Mulberry Bank

thence along the western and northern boundaries of the cottages at the south-eastern corner of Mulberry Bank thence across the roadway leading to Bozedown House thence along the field fence of Boze Down to the roadway leading to Goring Heath and thence across that roadway and along the eastern boundary thereof to Hardwick House West Lodge and thence along the eastern boundary of the private road leading southward from that lodge to the river Thames.

A.D. 1930.

(2) The added limits are shown upon the map which has been signed in triplicate by Herbert Dunnico the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk at his office. If there be any discrepancy between the above description and the said map the said map shall prevail.

(3) Subject to the provisions of this Act the Corporation shall have and may exercise within the added limits all and the like powers privileges and authorities for and in relation to the supply of water and be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing limits.

**34.** The part of the parish of Whitchurch which is included within the added limits shall cease to be within the limits of supply of the South Oxfordshire Water and Gas Company and notwithstanding anything contained in the South Oxfordshire Water and Gas Act 1905 or any other Act all rights and obligations of that company with respect to the supply of water in that part of the said parish shall cease and determine.

As to water limits of South Oxfordshire Water and Gas Company.

**35.** The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Amendment of section 35 of Waterworks Clauses Act 1847.

A.D. 1930.  
—  
Guarantees  
by district  
councils.

**36.**—(1) A rural district council any part of whose district is within the limits of supply may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any main pipe or works for the supply of water within any part of such district which is within the limits of supply.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act :

Provided that where such money is raised by means of a rate such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 of the Local Government Act 1929.

Charges for  
hose-pipes  
and refriger-  
ating  
apparatus.

**37.**—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if a hose-pipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first Any sums chargeable under this subsection shall be in addition to the rates for the time being authorised by or under the existing Acts of the Corporation or this Act for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for

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horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hose-pipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

(3) Where a person who takes a supply of water from the Corporation for any purpose desires to use any of the water so supplied for or in connection with a refrigerating apparatus the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

(i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter; or

(ii) be paid for on such other terms as may be agreed between such person and the Corporation :

Provided that if the person is only taking a supply of water from the Corporation for domestic purposes the minimum sum per quarter which may be demanded by the Corporation for the water used for or in connection with the refrigerating apparatus, if taken by meter shall not exceed ten shillings.

**38.**—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

Special  
terms for  
supplies to  
caravans &c.

A.D. 1930.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Supply to  
houses  
partly used  
for trade &c.

**39.** The Corporation shall not be bound to supply with water otherwise than by measure—

(a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or

(b) any workhouse hospital (whether public or private) asylum (whether public or private) sanatorium club hotel public-house restaurant or inn; or

(c) any boarding-house or public institution habitually occupied by at least twelve persons.

As to supply  
to farm-  
houses.

**40.**—(1) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate.

(2) If the owner or occupier of any farm premises within the limits of supply desires a supply of water for farming purposes and lays the necessary communication pipe from such premises to a main of the Corporation the Corporation shall supply to such owner or occupier by meter such quantity of water as the owner or occupier may from time to time reasonably require for such farming purposes. Provided that the Corporation shall not be required to supply water under this section at a pressure greater than that to be afforded by gravitation from the reservoir from which such water is supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

Water rate  
&c. may be  
collected  
with general  
rate.

**41.**—(1) Water rates rents or charges payable to the Corporation may be collected together with the general rate and the same books may be used for the said rates rents and charges.

(2) The Corporation may demand water rates rents and charges both within and beyond the borough by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that (subject to the provisions of this Act) the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively. A.D. 1930. —

**42.** In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks manager or engineer of the Corporation or any person duly authorised by him in writing may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such manager or engineer or authorised person from entering either under the said section 57 or under this section or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section. Extension of power to inspect premises.

**43.** When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the water works manager or engineer of the Corporation. Maintenance of common pipe.

**44.—(1)** The Corporation shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water: Separate communication pipes may be required.

A.D. 1930.

Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Corporation may require that a separate pipe be laid from the main into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

As to communication pipes.

**45.**—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

Corporation to connect communication pipes with mains.

**46.** Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses

incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting. A.D. 1930.

**47.** Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Injuring  
meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

**48.** A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not Notice of  
discon-  
tinuance,

A.D. 1930. — be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the waterworks manager or engineer of the Corporation.

Penalty for interfering with valves &c.

**49.** Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Penalty for closing valves and apparatus.

**50.** Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Power to Corporation to repair communication pipes.

**51.** If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and where any such injury or defect has been found to exist the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any

road pavement or soil for those purposes) shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier: A.D. 1930.  
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Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

**52.** For the removal of doubts it is enacted that the expression "annual value" in section 31 (Rate at which water is to be supplied for domestic purposes) of the Reading Waterworks Act 1851 means the rateable value as appearing in the valuation list for the time being in force or the net annual value as so appearing where it differs from the rateable value. Meaning of  
"annual  
value."

## PART V.

### LANDS AND STREET WORKS.

**53.**—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter mentioned together with all necessary or proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of such street works and for the improvement and development of frontages or of lands abutting on or adjacent to any street or for other the purposes of this Part of this Act. Power to  
construct  
street works.

(2) The street works hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Street Work No. 1 A widening and improvement of the junction of Cow Lane and Cardiff Road;

Street Work No. 2 A new street from the junction of Cow Lane and Cardiff Road to the Thames Side Promenade together with a widening and improvement of Cow Lane.

A.D. 1930.

(3) When the Corporation shall have acquired any of the land numbered 18 on the deposited plans the obligations of the Corporation under the conveyance dated the eighth day of June nineteen hundred and seven made between Edward Francis Saunders Ind Coope and Company Limited Henry George Wilson and the Corporation so far as they relate to fencing the land so acquired shall cease.

Limits of deviation for street works.

**54.** In the construction of the street works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards.

Application of road materials excavated in construction of works.

**55.** Any paving metalling or material excavated by the Corporation in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

Land laid into streets to form part thereof.

**56.** All lands acquired by the Corporation under this Part of this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired.

Cost of construction of new street.

**57.**—(1) When the Corporation have constructed the new street (Work No. 2) authorised by this Part of this Act the owner of any land fronting adjoining or abutting upon such street shall repay to the Corporation (subject as hereinafter provided) such part of the total cost of such construction as shall be determined by an apportionment of such total cost among the several owners according to the frontage of their respective lands Provided that the total cost to be so apportioned shall not exceed the total cost of a road thirty-six feet wide of the standard of construction required by the Corporation in making up a private street at the time the said Work No. 2 is constructed.

(2) Every owner shall pay his apportioned share of the cost of construction as and when his frontage shall

have been built up to or appropriated as curtilages or for buildings in the said new street. A.D. 1930.

(3) The total cost to be apportioned under the provisions of this section and the amount of each share so apportioned shall in the first instance be settled by the surveyor of the Corporation and the Corporation shall thereupon give notice thereof to the owners of the said land and if any such owner shall dispute the amount payable in respect of his land the same shall be determined by arbitration.

(4) The apportioned cost under this section shall be recoverable by the Corporation as private improvement expenses and the provisions of the Public Health Act 1875 relating to private improvement expenses (including section 268 of that Act) shall apply accordingly.

**58.** The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the thirty-first day of October nineteen hundred and thirty-five. Period for compulsory purchase of lands.

**59.** The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice to the occupier enter upon and into the lands and buildings by this Act authorised to be taken or any of them for the purposes of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. Power to enter upon property for survey and valuation.

**60.** Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection and benefit of Francis Grant Saunders the tenant for life and of Addison James Bromham and Arthur John Law the trustees of the marriage settlement dated the ninth day of July eighteen hundred and eighty-one their successors and assigns as owners or owner for the time being of the lands in the borough which are numbered 3 5 6 7 10 11 12 13 15 16 17 18 and 19 on the deposited plans (all of whom are in this section referred to as "the owner") shall For protection of Saunders Estate.

A.D. 1930. apply and have effect except so far as may be otherwise agreed in writing between the Corporation and the owner (that is to say) :—

- (1) In this section “the signed plan” means the plan signed by Arthur Stanley Parsons the borough surveyor of Reading on behalf of the Corporation and by Dryland Haslam of Friar Street Chambers Reading chartered surveyor on behalf of the owner one copy of which plan has been retained by the Corporation and the other copy thereof by the owner :
- (2) Upon the passing of this Act the Corporation shall be deemed to have served a notice to treat in respect of the lands which are coloured green upon the signed plan and the Corporation shall purchase such lands and shall pay to the owner for such lands the sum of seven hundred pounds which sum shall be deemed to include full satisfaction and compensation for all damage or injury (whether permanent temporary or recurring) loss or inconvenience sustained or to be sustained by the owner by reason of the severance of the lands coloured green on the signed plan from the other lands of the owner or by reason of such other lands being otherwise injuriously affected by the exercise by the Corporation of the powers conferred upon them by this Act Provided that the sum of three hundred and sixty-three pounds and ten shillings shall be repaid to the Corporation by the owner in whole or in part as or to the extent to which the section of this Act of which the marginal note is “Cost of construction of new street” comes into operation in relation to Street Work No. 2 and the lands of the owner adjoining the same :
- (3) Immediately upon the acquisition by the Corporation of the lands coloured green upon the signed plan the Corporation shall pay to Frank Edward Grant and Leonard Cecil Grant the sum of fifty pounds in full settlement of all claims for compensation by them as tenants in respect of the exercise by the Corporation of the powers conferred upon them by this Act :

- (4) The owner and his tenants and their servants shall at all times including the time during which the construction of the street works hereby authorised shall be in progress have reasonable rights of access between the street and the farm lands on each side thereof including the right to drive cattle and farm waggon to and from such lands across or along the said street at such points as may be reasonably necessary : A.D. 1930.
- (5) Simultaneously with the construction of Street Work No. 2 the Corporation shall construct thereunder on the line marked A—B on the signed plan or within three yards of that line a culvert having a flat top as high as the level of the road will reasonably permit and a width of twelve feet and so constructed as adequately to carry the ordinary traffic of the district. The base of such culvert shall be constructed of concrete and the walls thereof of brick or concrete and such walls shall be constructed in straight lines between the commencement and termination of the said culvert :
- (6) If in pursuance of the powers conferred upon them by the section of this Act of which the marginal note is " Limits of deviation for street works " the Corporation shall construct the surface of Street Work No. 2 at a higher level than that of one hundred and twenty-six feet above Ordnance datum they shall also construct such ditches and culverts for the purpose of carrying off surface water across and along the side of Street Work No. 2 as may be reasonably required by the owner or determined by arbitration as hereinafter provided and the cost incurred by the Corporation in the construction of any such ditches and so much of such culverts as would be required for the purpose of crossing a street of a width of thirty-six feet shall for the purposes of the section of this Act of which the marginal note is " Cost of construction of new street " be deemed to form part of the total cost of such construction but the cost of constructing the remainder of such culverts shall be borne by the Corporation :

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- (7) Notwithstanding any reference to an improvement charge upon any plan mentioned in this Act the lands of the owner shall not nor shall any part thereof be subject to any improvement charge or any charge other than that (if any) which may arise under the section of this Act of which the marginal note is "Cost of construction of new street" :
- (8) Immediately upon the acquisition by the Corporation of the lands coloured green upon the signed plan the Corporation shall construct fences on each side thereof in the lines coloured red upon the signed plan and shall maintain such fences to the reasonable approval of the owner until the frontage adjoining the same shall have been built upon or appropriated as curtilages or for buildings when the Corporation may remove such fences from the frontage so built upon or appropriated. Such fences shall be six feet in height and shall consist of pales and spaces the pales being three inches in width and the spaces two inches in width :
- (9) The Corporation shall construct in and as part of the fences referred to in the last preceding subsection hereof and at such points as may be reasonably required by the owner or determined by arbitration as hereinafter provided four gates on the westerly side of Street Work No. 2 and three gates on the easterly side thereof with such slopes (if any) as may be reasonably required by the owner for the purpose of obtaining access to Street Work No. 2 from his adjoining lands. Such gates shall respectively be ten feet at least in width and shall be constructed of the same material as nearly as may be as the fences adjoining the same and shall be maintained by the Corporation to the reasonable approval of the owner until the frontage adjoining the same shall have been built upon or appropriated as curtilages or for buildings when the Corporation may remove such gates from the frontage so built upon or appropriated :
- (10) Any dispute or difference which may arise between the Corporation and the owner under

this section or as to anything to be done or not to be done thereunder shall be settled by arbitration the arbitrator to be a surveyor or other fit person to be appointed by the President for the time being of the Surveyors' Institution on the application of the Corporation or the owner after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory re-enactment thereof for the time being in force shall apply to any such arbitration.

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**61.**—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

Further powers for acquisition of lands.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund and general rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not

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—

in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or

(b) in such other manner as may be approved by the Minister.

## PART VI.

## FINANCIAL.

Power to  
borrow.

62.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied thereby shall respectively be “the prescribed period”) mentioned in the third column of the said table (namely):—

| 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 2                 | 3                                           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|---------------------------------------------|
| Purpose.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Amount.           | Period for repayment.                       |
| (a) The purchase of the undertaking of the company including the payment of any sum payable by the Corporation under the scheduled agreement or required for the purpose of paying off any of the debentures of the company or the overdraft and loan referred to in paragraphs (e) and (f) of clause 2 of the scheduled agreement or of meeting liabilities under the contracts referred to in paragraph (d) of clause 2 of the scheduled agreement and the payment of the costs and expenses incidental to the transfer of the undertaking of the company to the Corporation other than the costs of this Act (so far as the same are payable by the Corporation). | The sum requisite | Forty-five years from the date of transfer. |

| 1                                                                                                                                                                                                     | 2                 | 3                                                 | A.D. 1930. |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|---------------------------------------------------|------------|
| Purpose.                                                                                                                                                                                              | Amount.           | Period for repayment.                             |            |
| (b) The purchase of lands under the sections of this Act of which the marginal notes are "Power to construct street works" and "Sale of certain lands by managing director of company to Corporation" | £<br>2,700        | Sixty years from the date or dates of borrowing.  |            |
| (c) The construction of the water-works authorised by this Act.                                                                                                                                       | 135,748           | Forty years from the date or dates of borrowing.  |            |
| (d) New mains replacements and extensions of mains and other water-works purposes.                                                                                                                    | 30,000            | Thirty years from the date or dates of borrowing. |            |
| (e) The construction of the street works authorised by this Act.                                                                                                                                      | 14,500            | Twenty years from the date or dates of borrowing. |            |
| (f) The payment of the costs charges and expenses of this Act.                                                                                                                                        | The sum requisite | Five years from the passing of this Act.          |            |

(2) (a) The Corporation may also borrow with the consent of the Minister such further moneys as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of this Act.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

**63.**—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act or any other statutory borrowing power (except moneys raised by the issue of stock) such fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed  
 A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

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(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

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(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment

A.D. 1930. of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof may be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Application  
of section 79  
of Public  
Health Act  
1925.

**64.** The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund a loans fund or a redemption fund for the purpose of paying off moneys borrowed by the Corporation in the exercise of any statutory borrowing power or for the redemption or purchase of stock issued for the purpose of raising such moneys as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875.

Payments  
into sinking  
fund.

**65.** When under the provisions of this Act or of any other Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund redemption fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation the appropriate sums of principal required to be from time to time set apart for or paid into such sinking fund redemption fund or loans fund may be paid and provided out of the general rate fund and general rate.

Use of  
moneys  
forming part  
of sinking  
and other  
funds.

**66.** Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exercisable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation accident or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

(1) The moneys so used shall be repaid to the lending fund within the period by the methods and out

A.D. 1930.

of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable :

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

**67.**—(1) The Corporation shall make provision for the extinction of the debentures of the company and of any stock mortgage or other security substituted for the same by means of a sinking fund so as to purchase and extinguish or to be in a position to purchase and extinguish the said debentures or security within a period of forty-five years from the date of transfer.

Sinking  
fund for  
debentures.

(2) The provisions of this Act with reference to sinking funds shall extend and apply with any necessary modifications to the sinking fund to be provided under

A.D. 1930. — this section and for the purposes thereof the prescribed period shall be the period of forty-five years from the date of transfer.

(3) The Corporation may at any time apply the whole or any part of the sinking fund to be provided under this section in or towards the purchase of the said debentures or any of them or in or towards paying off any stock mortgage or other security substituted for such debentures. Provided that if such fund be an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

Consolidated  
loans fund.

**68.**—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-one the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

A.D. 1930.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and
- (c) in the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Corporation and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister

A.D. 1930. — and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Evidence of transfer or transmission of securities.

**69.** It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or registrar of stock of the Corporation of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Interest on mortgages held jointly.

**70.** Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Application of revenue and payment of expenses of undertakings.

**71.—(1)** All money received by the Corporation on account of the revenue of each of the Corporation undertakings shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of any such undertaking shall be paid out of that fund.

(2) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the Corporation undertakings in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertakings respectively.

(3) The following enactments are hereby repealed (namely) :—

The Reading Local Board Waterworks Act 1868—

Section 22 (Waterworks half-yearly revenue account to be kept by the local board);

Section 23 (For inspection of waterworks half-yearly revenue account); A.D. 1930.

Section 24 (For auditing waterworks half-yearly revenue account);

Section 25 (Expenses of inquiry or audit);

Section 26 (Penalty on local board refusing to produce books vouchers &c.);

Section 27 (Application of any surplus profits on waterworks half-yearly revenue account);

Section 28 (Depreciation fund to be established).

The Reading Corporation (Tramways) Act 1900—

Section 34 (Application of revenue).

72.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the Corporation undertakings (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

Separate  
accounts to  
be kept.

(a) The working and establishment expenses and cost of maintenance of the undertaking;

(b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;

(c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

(d) All other expenses (if any) of the undertaking properly chargeable to revenue;

(e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including

A.D. 1930.      receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Reserve  
funds.

**73.**—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the Corporation undertakings by setting aside such an amount as they may from time to time think reasonable and investing the same subject to the provisions of the section of this Act of which the marginal note is "Use of moneys forming part of sinking and other funds" in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding in the case of the water undertaking of the Corporation a sum equal to one-tenth and in the case of the tramway undertaking of the Corporation a sum equal to one-fifth of the aggregate capital expenditure for the time being upon those undertakings respectively and not exceeding in the case of the markets undertaking of the Corporation the sum of five hundred pounds.

(2) Any reserve fund which has been formed for the purposes of any of the Corporation undertakings and which is in existence at the passing of this Act shall be deemed to have been formed under this section.

(3) All interest received in any year from the investment of any reserve fund shall be carried to and form part of the revenue for that year of the general rate fund but the reserve fund shall in that year be increased by a sum equal to the amount of such interest if and so far as the amount of the fund for the time being is less than the prescribed maximum.

(4) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising

against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. A.D. 1930.

(5) Resort may be had to the said reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

**74.—**(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors elected and appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.” Appointed auditors.

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditor and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or

A.D. 1930.      expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Power to  
borrow by  
issue of  
bonds.

**75.**—(1) In addition to any other form of borrowing the Corporation may borrow any sums which they have power to borrow under this Act or any other Act or Order by the issue of bonds to be called “Reading Corporation bonds” (and in this Act referred to as “bonds”) in accordance with the provisions of this Act.

(2) The provisions set out in the Fourth Schedule to this Act shall have effect with regard to bonds.

(3) All bonds issued under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of issue of the bonds or on any other ground whatsoever and shall also rank equally with and have the same status as all other securities issued by the Corporation.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Subscrip-  
tions to  
local  
government  
associations  
and other  
expenses.

**76.** The Corporation may pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882—

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough. A.D. 1930.

**77.** The Corporation may if they think fit establish a fund to be called "the lands fund" which shall form part of the general rate fund to provide for purchasing or acquiring or taking on lease and holding any lands and buildings which in their opinion it is desirable at any time to acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and such fund shall be formed by annually appropriating thereto out of the general rate such an amount as the Corporation may from time to time determine not exceeding the amount which would be produced by a rate of twopence in the pound calculated in manner provided by rules from time to time made by the Minister under the Rating and Valuation Act 1925 Provided that when the fund aforesaid shall amount to the sum of twenty thousand pounds the Corporation shall discontinue such annual payments but if the fund is at any time reduced below the sum of twenty thousand pounds the Corporation may recommence and continue the annual payments until the fund be restored to the sum of twenty thousand pounds. Lands fund.

**78.—**(1) The Corporation may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called the "renewal and repairs fund" any sum not exceeding an amount equal to twelve and one-half per centum of the cost incurred by the Corporation (otherwise than for the purposes of any of the Corporation undertakings) in connection with the provision of horses carts mechanically propelled vehicles stables depôts boilers and equipment and apparatus in connection therewith as shown in the accounts at the thirty-first day of March in any such year. Renewal and repairs fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed an amount equal to one-third part of the cost referred to in subsection (1) of this section.

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(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for the maintenance and renewal of the appliances works and equipment referred to in subsection (1) of this section which are not comprised in any of the Corporation undertakings and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

Return to  
Minister  
with respect  
to repay-  
ment of  
debt.

**79.**—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment which was in force in the borough immediately before the passing of this Act and which requires an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

A.D. 1930.

## PART VII.

### MISCELLANEOUS.

**80.** The expression "the county borough of Reading" in paragraph 3 (a) of the scheme made on the twenty-fourth day of October nineteen hundred and eleven for the further amendment of a scheme made under the Endowed Schools Acts on the fifteenth day of August eighteen hundred and ninety in the matter of Christ's Hospital shall be deemed to mean the county borough of Reading as for the time being constituted.

Application  
of Wests'  
Charity to  
borough.

**81.** If a justice is satisfied on complaint by any rate collector that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate or water rate rent or charge which may be due from him and intends to evade payment of the same by departing from the borough the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said rate collector to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Recovery of  
rate from  
persons  
removing.

**82.** Where under this Act any question or dispute other than questions to which the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 apply is to be referred to an arbitrator or to arbitration the provisions of the Arbitration Act 1889 shall apply thereto.

Application  
of Arbitra-  
tion Act  
1889.

**83.—**(1) The following provisions of the Act of 1913 and of the Act of 1914 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely) :—

Application  
of provi-  
sions of Acts  
of 1913 and  
1914.

The Act of 1913—

Section 4 (Application of Reading Corporation  
Act 1881);

A.D. 1930.

Section 7 (Correction of errors in plans and book of reference);

Section 9 (Provisions as to new buildings and new interests);

Section 12 (Persons under disability may grant easements &amp;c.);

Section 13 (Power to retain sell &amp;c. lands);

Section 14 (Proceeds of sale of surplus lands);

Section 17 (Subsidiary works);

Section 19 (Power to alter steps areas pipes &amp;c.);

Section 20 (Temporary stoppage of streets);

Section 31 (Mode of raising money);

Section 32 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 33 (Mode of payment off of money borrowed);

Section 35 (Protection of lender from necessity of inquiry);

Section 36 (Corporation not to regard trusts);

Section 37 (Appointment of receiver);

Section 38 (Application of money borrowed);

Section 39 (Expenses of execution of Act);

Section 40 (Audit of accounts);

Section 52 (Inquiries by Local Government Board);

Section 54 (Application of section 265 of Public Health Act 1875); and

Section 55 (Powers of Act cumulative).

The Act of 1914—

Section 88 (Recovery of penalties &amp;c.);

Section 90 (Informations by whom to be laid);

Section 92 (Damages and charges to be settled by justices); and

Section 94 (Saving for indictments &amp;c.).

(2) Provided that for the purposes of such application—

(a) Section 9 of the Act of 1913 shall have effect as if the fourteenth day of November nineteen hundred and twenty-nine were therein referred to instead of the twentieth day of November nineteen hundred and twelve;

(b) Section 52 of the Act of 1913 shall have effect as if the words "five guineas" were substituted therein for the words "three guineas". A.D. 1930.

(3) Provided also that—

(i) in the exercise of the powers of section 13 of the Act of 1913 as applied to this Act the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any lands or interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained;

(ii) nothing in section 13 of the Act of 1913 shall release the Corporation or any person purchasing or acquiring any lands from them under that section as applied to this Act from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

**84.** Section 38 (Recovery of moneys by Local Board) of the Reading Local Board Waterworks Act 1868 is hereby repealed. Repeal of section 38 of Act of 1868.

**85.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

A.D. 1930.

The SCHEDULES referred to in the  
foregoing Act.

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THE FIRST SCHEDULE.

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AN AGREEMENT made the eighteenth day of January nineteen hundred and thirty between THE TILEHURST PANGBOURNE AND DISTRICT WATER COMPANY LIMITED whose registered office is situate at Norcot Road Tilehurst in the county borough of Reading (hereinafter called "the Company") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF READING acting by the council of the said borough (hereinafter called "the Corporation") of the other part.

WHEREAS the Company were registered under the Companies Acts 1862 to 1890 for the purpose of constructing and maintaining waterworks and supplying water :

And whereas by the Tilehurst Pangbourne and District Water Order 1894 (confirmed by the Water Orders Confirmation Act 1894) the Company were authorised to make and maintain the works described in section 12 of the said Order on the lands referred to in such section and shown on the deposited plans therein referred to and to take collect and impound waters by means of such works for the purpose of supplying water within the limits of supply defined in section 5 of the same Order :

And whereas the Company duly constructed the said works on the said lands :

And whereas by the Tilehurst Pangbourne and District Water Order 1896 (confirmed by the Water Orders Confirmation Act 1896) the limits of supply of the Company were extended as defined in section 4 of the said Order and the Company were empowered to raise additional capital :

And whereas by the Tilehurst Pangbourne and District Water Order 1899 (confirmed by the Water Orders Confirmation Act 1899) the Company were empowered to raise additional capital :

And whereas by the Tilehurst Pangbourne and District Water Order 1901 (confirmed by the Water Orders Confirmation (No. 2) Act 1901) the limits of supply of the Company were further extended as defined in section 5 of the said Order :

A.D. 1930.  
—

And whereas the Company have acquired the lands at Pangbourne described in the First Schedule hereto and are constructing or have constructed a well or borehole and pumping station thereon :

And whereas the issued share capital of the Company is as follows :—

Under the said Order of 1894 £16,000 in 1,600 shares of £10 each fully paid entitled to a maximum dividend of 10 per cent.

Under the said Order of 1896 £3,000 in 300 shares of £10 each fully paid entitled to a maximum dividend of 7 per cent.

Under the said Order of 1899 £10,100 in 1,010 shares of £10 each fully paid entitled to a maximum dividend of 7 per cent.:

And whereas under the said Orders of 1894 and 1896 the Company have raised loan capital by the issue of debentures upon which the sum of £4,200 is now owing and which carry interest at the rate of 4 per cent. per annum :

And whereas the Company are liable to the payment of—

- (a) a wayleave rent of £10 per annum payable to the Company of the Proprietors of Whitchurch Bridge in respect of mains &c. laid down and crossing such bridge; and
- (b) a rent of £25 payable to the executors of the late John Foster Esq. in respect of mains &c. laid down in the parish of Whitchurch by the said John Foster of Coombe Lodge Whitchurch Oxon. since deceased :

And whereas the Company have agreed subject to the approval of Parliament and of the shareholders of the Company to sell and transfer and the Corporation have agreed subject to the approval of Parliament to purchase the undertaking of the Company upon the terms and subject to the conditions hereinafter contained :

Now it is hereby agreed by and between the Company and the Corporation as follows :—

1. In this agreement—

The expression “the undertaking of the Company” includes—

- (a) All wells boreholes waters water supplies water rights pumping stations reservoirs mains pipes and other waterworks machinery plant fixed and movable stock-in-trade lands (including in particular the lands and works described in the

A.D. 1930.

First Schedule hereto) buildings goods chattels stocks and stores of all kinds mortgage registers and books (other than the books relating exclusively to the shareholders of the Company) deeds agreements engineers' opinions and reports plans prints drawings specifications descriptions of works vouchers letter-books records of business and proceedings and other documents and all other real and personal property assets and effects of whatever nature (including things in action) forming part of the Company's undertaking at the date of transfer;

(b) All the rights powers and privileges and authorities vested in or belonging to or had and enjoyed by the Company at the date of transfer;

(c) The benefit of all agreements as to or concerning the sale or supply of water by the Company and other agreements to which the Company or some body or person on their behalf is a party existing on the date of transfer and all claims and demands powers rights privileges liberties and authorities whatsoever of or to which the Company on the date of transfer are seised or possessed or in anywise entitled under the statutory enactments relating to their undertaking or at law or in equity and the profits and goodwill of the undertaking on and from the date of transfer;

(d) All moneys credits bills notes investments and securities for money belonging to the Company at the date of transfer as part of or in the nature of capital including the reserve fund (if any) and consumers' deposits but not including any sums of money belonging to or which may be in the possession of or due to the Company in respect of water rates rents or charges or other debts in the nature of revenue owing to or accruing to them and recoverable by the Company on or prior to the date of transfer all which last mentioned sums of money shall belong to and be retained by the Company but the Company shall not be entitled to retain any rates rents charges or other sums which may be due to them in respect of any period after the 31st day of December 1930:

The expression "the date of transfer" means the 1st day of January 1931.

2. Subject as hereinafter provided the Company shall sell and transfer and the Corporation shall purchase as a going concern the undertaking of the Company freed and discharged

from all charges debts and liabilities upon or affecting the same except all liabilities as from the date of transfer in respect of the following :— A.D. 1930.

- (a) The existing £4,200 debentures of the Company and all interest to accrue thereon ;
- (b) The wayleave rent of £10 per annum payable to the Company of Proprietors of Whitchurch Bridge above referred to ;
- (c) The rent of £25 per annum payable to the executors of the late John Foster Esq. above referred to ;
- (d) The contracts and liability short particulars of which are set out in the Second Schedule hereto ;
- (e) The overdraft of the Company on capital account at Barclays Bank Limited Reading amounting on the date hereof to £6,810 16s. 3d. together with any increase in that overdraft which may be made with the reasonable approval of the Corporation for the purpose of meeting any outstanding liabilities under the said contracts and which are duly certified by the engineer to the Company as having become due and payable at the time of his certificate ;
- (f) The existing loan of £400 to the Company from the said bank and interest to accrue thereon ;
- (g) All other charges debts and liabilities upon or affecting the same at the date of transfer incurred by the Company after the date of and in accordance with this agreement and fairly and reasonably attributable to capital.

3. The undertaking of the Company shall be transferred to the Corporation on and as from and including the date of transfer.

4. As consideration for the said transfer the Corporation shall on the date of transfer pay to the Company the sum of £30,846 and shall assume the liabilities referred to in paragraphs (a) to (g) inclusive of clause 2 of this agreement and shall indemnify the Company against the same. The Corporation shall also within three months after the date of transfer pay to the Company the amount of the value of the consumable stores purchased by the Company prior to the date of transfer and charged to revenue account and existing on the date of transfer which amount shall be agreed upon between the Company and the Corporation or in case of dispute shall be settled by arbitration as hereinafter provided.

5. The existing debentures of £4,200 shall continue to be a charge on the undertaking of the Company in the hands of the Corporation who shall indemnify and hold harmless the Company against any claims in respect thereof except in regard to interest

A.D. 1930.      for any period prior to the date of transfer Provided that the Corporation may (but by agreement only with the holder of any of such debentures) substitute for the debenture or debentures so held by him any stock mortgage or security of the Corporation or pay off the amount secured by such debentures.

6. The purchase shall be completed at the offices of the Company's solicitor on the 31st day of December 1930 and thereupon the Company and all necessary parties (if any) shall execute and do all assurances and things for vesting the undertaking of the Company in the Corporation and giving them the full benefit of this agreement.

7. The Corporation shall be entitled to possession of the undertaking of the Company on the date of transfer whether the purchase shall have been actually completed or not. If the purchase shall not be actually completed on the date of transfer the Corporation shall pay to the Company interest at the rate of £6 per cent. per annum on all sums payable to the Company hereunder on the date of transfer (except the value of the consumable stores taken over by the Corporation pursuant to clause 4 hereof) until actual completion of the purchase.

8. The Company shall if required by the Corporation deliver to them an abstract of their title to the several hereditaments belonging to them the root of title in each case to be not less than twenty years previous to the date of transfer unless the Company on purchase by them shall have accepted a root of title subsequent to such date in which case the root of title thereto shall be accepted. The Corporation shall accept without requisition or objection the title of the Company to the several hereditaments as so deduced.

9. Dividends (within the maximum dividends payable by the Company) for the years ending the 31st day of December 1929 and 1930 shall only be declared if and to the extent to which they can properly be declared in the ordinary course of the conduct of an undertaking such as the undertaking of the Company and after all liabilities on revenue account for those years respectively (including the payment of interest on the debentures of the Company and on the above-mentioned bank overdraft and loan) have been met and (in the case of the year ending the 31st day of December 1930) after provision has been made for paying the costs charges and expenses incurred by the Company of and incidental to and in connection with negotiations leading up to these presents and prior to the 25th day of September 1929 and the costs of winding up the Company and before declaring a dividend for the years ending the 31st day of December 1929 and 1930 respectively the Company shall submit the revenue account and balance sheet for the year to the Corporation for approval and if there is any dispute between the Corporation and the

Company (having regard to the foregoing provisions of this clause) : A.D. 1930.  
respecting any dividend which the Company propose to declare  
such dispute shall be settled by arbitration as hereinafter provided.

10. The Corporation may from time to time appoint a member of the Corporation to attend meetings of the Company's board of directors and the Corporation shall notify the Company of any such appointment as soon as practicable.

11. The Company shall until the date of transfer maintain and keep their works in such reasonably proper and efficient condition and repair as the same are now in and shall manage maintain and carry on their undertaking in the same manner as the same has hitherto been managed maintained and carried on by them in the ordinary course of business maintaining so far as is practicable normal supplies of consumable stores and the Company may proceed with the carrying out of works already ordered in respect of their property at Pangbourne with such alterations and additions thereto as the Company may reasonably think necessary or desirable and the Corporation may reasonably approve but as from the date of this agreement and during the continuance thereof the Company shall not without the written approval of the Corporation issue any new shares or debentures or incur any capital expenditure other than expenditure under the contracts referred to in the Second Schedule hereto or make or enter into any new contract agreement liability or other obligation the duration whereof shall extend beyond the date of transfer (except contracts liabilities and other obligations entered into in the ordinary course of business) and the Company shall not without the like approval increase or decrease the water rates or charges now in force or increase the salary or emoluments of any officer or other employee of the Company unless in any case such last-mentioned increase is necessary by reason of the intervention of any wages board or trade union.

12. The Company shall pay satisfy and discharge all the debts liabilities and obligations of the Company outstanding at the date of transfer except the liabilities which are expressly taken over by the Corporation under clause 4 of this agreement but including interest up to the date of transfer on the existing debentures of the Company and the bank overdraft and loan above referred to and the rents above mentioned up to that date.

13. The Corporation shall on the date of transfer pay to the Company in addition to all other sums payable to the Company by the Corporation under this agreement the sum of £2,000 to be applied by the Company in making compensation for loss of office as directors and managing director to the persons who shall then be the directors of the Company (including the managing director) and to be divided between them as such directors and managing director shall agree amongst themselves.

A.D. 1930.

14. The Corporation shall not be required to make any payment to the Company or to the engineer or auditors of the Company for or in respect of compensation for loss of office by the said engineer and auditors.

15.—(1) The Corporation shall take over and employ Albert Ball the manager and secretary of the Company (if he shall be in the service of the Company at the date of transfer and willing to enter the service of the Corporation) for a period of two years commencing on the date of transfer at a salary of £400 per annum and on the expiration of such period such employment (if not terminated by either party by three months' notice in writing to the other) shall be continued and be subject to termination by either party on giving three months' notice thereof to the other.

(2) If the said Albert Ball retires on account of ill-health during the said period of two years or the said employment is terminated under the provisions hereof the Corporation shall pay to him a superannuation allowance at the rate of £266 13s. 4d. per annum to commence from the date of retirement or termination of employment as the case may be.

(3) If the said Albert Ball should die before becoming entitled to the payment of a superannuation allowance under this agreement the Corporation shall pay to his executors or administrators such a sum of money as is equal to one-fortieth part of his salary at the rate of £400 per annum for each completed year of his service with the Company and the Corporation and for the purpose of this provision it is agreed that his service with the Company commenced on the 1st day of January 1901.

(4) If the said Albert Ball should die after becoming entitled to the payment of a superannuation allowance under this agreement the Corporation shall pay to his executors or administrators a sum of money equal to the difference if any between the sum calculated on the years of service as aforesaid and the total amount of payment made to him on account of superannuation up to the date of his death.

(5) If the said Albert Ball does not desire to enter the service of the Corporation the Corporation shall pay him on the 1st day of January 1931 as compensation the sum of £1,951 being the capitalised value of the said superannuation allowance of £266 13s. 4d.

16. The Corporation shall take over and employ the following seven officers and employees now in the employment of the Company viz. :—

Thomas Rowland Aitken (inspector)

Percival Rose (engine driver)

Harry Edward Aitken (labourer)

A.D. 1930.

Alfred Richardson (labourer)

George Newall (engine attendant at Pangbourne)

Charles Leonard Dibley (clerk and inspector)

Bert Yates (junior clerk)

(if they shall be in the service of the Company at the date of transfer and willing to enter the service of the Corporation) at rates of remuneration (subject to adjustment by reason of the intervention of any wages board or trade union) equivalent to those which the said officers and employees were receiving from the Company and otherwise on the same terms and conditions (subject to adjustment as aforesaid) as those on which they were employed by the Company at the date of this agreement or at such other rates of remuneration and terms and conditions as may be agreed between the Corporation and those officers and employees.

17. The Company shall so far as they reasonably can secure that the lands which were purchased by Frederick William Talbot the managing director of the Company on behalf of the Company by means of a conveyance dated the 25th day of June 1929 and made between Harry Aldridge of the one part and the said Frederick William Talbot of the other part shall be conveyed by the said Frederick William Talbot to the Corporation the consideration for such conveyance being the sum of £1,500 and the Corporation shall pay to the said Frederick William Talbot or to the Company on his behalf interest on that sum at the rate of 6 per cent. per annum from the 25th day of June 1929 up to the date of such conveyance to the Corporation after deducting from such interest the amount of any income received or receivable by the said Frederick William Talbot from any letting of such lands. The Corporation shall also pay to the said Frederick William Talbot or to the Company on his behalf all expenses reasonably incurred by the said Frederick William Talbot in relation to the conveyance to him and by him to the Corporation of the said lands.

18. On and from the passing of an Act giving effect to this agreement the duly authorised officer or officers of the Corporation shall have access to the offices of the Company during office hours and may inspect the books papers records and writings of the Company and make themselves acquainted with the affairs of the Company preparatory to the taking over of the undertaking of the Company on the date of transfer and the Company shall direct their secretary or other officers to give to the said officer or officers such assistance and information relating to such affairs as they may reasonably require.

A.D. 1930  
—

19. This agreement is subject to the approval of the shareholders of the Company pursuant to the standing orders of Parliament to confirmation by Parliament and to such alterations as may be made by Parliament therein and for the purposes of obtaining such confirmation the Corporation have deposited and shall promote a Bill in the present session of Parliament of 1929-30 and will use their best endeavours to carry the same through Parliament with all reasonable dispatch. In the event of either House of Parliament making any material alteration in this agreement or in the provisions of the said Bill relative to the subject-matter of this agreement either the Company or the Corporation may upon giving notice in writing to the other before the Bill is read the third time in the second House withdraw from the same and if either House of Parliament make any material alteration in the terms of the said Bill relating to the conduct of the undertaking of the Company by the Corporation which the Corporation are unable or unwilling to accept the Corporation may upon giving similar notice to the Company withdraw from the same and in either of such cases or if such Bill be not passed this agreement (except as to clauses 20 and 22 hereof) shall be void and of no effect and so much of the Bill as relates thereto shall be withdrawn.

20. The Corporation shall insert such clauses in the said Bill as may be necessary for the purpose of confirming and giving effect to the provisions of this agreement and shall also insert such further provisions therein as the Company may reasonably require for and in relation to the winding up and dissolution of the Company and the Company shall at the expense of the Corporation aid and assist the Corporation in obtaining the said intended Act and in furtherance of this object shall supply to the Corporation all such information particulars and evidence in the possession of the Company or of any of their officers and servants as the Corporation may reasonably require and the Company by themselves their officers and servants aforesaid shall at the like expense support the Bill by evidence or otherwise if need be. Provided however that if such course shall be reasonably necessary the Company shall be at liberty to petition against the Bill or against alterations in the Bill to ensure that no provisions inconsistent with the provisions of this agreement or insufficient for the purposes of the last-mentioned provisions or adverse to the interests of the Company are inserted and to be heard by counsel and witnesses in support of such petition and any expense properly and reasonably incurred by the Company in so doing shall be repaid to the Company by the Corporation.

21. If the said Bill shall not be promoted and become an Act before the 31st day of December 1931 this agreement shall thereupon become void (except as to clauses 20 and 22 hereof).

22. All costs charges and expenses properly and reasonably incurred by the Company of and incidental to and in connection with all or any of the following matters viz. :— A.D. 1930.

- (a) The preparation and completion of this agreement (exclusive of the negotiations leading up to these presents and prior to the 25th day of September 1929) and the stamping and denoting thereof including the stamp duty payable;
- (b) The considering and approving of the said Bill; and
- (c) The submission to and approval by the proprietors of the Company of this agreement and the said Bill in pursuance of the standing orders of Parliament;

shall be borne and paid by the Corporation.

23. Any question or dispute arising between the Company and the Corporation under this agreement shall be settled by a single arbitrator to be agreed upon or appointed by the President for the time being of the Institute of Chartered Accountants and this shall be deemed to be a submission to arbitration within the Arbitration Act 1889 or any statutory modification thereof or re-enactment for the time being in force.

In witness whereof the Company and the Corporation have hereunto affixed their respective common seals the day and year first above written.

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The FIRST SCHEDULE above referred to.

All that piece or parcel of land (partly covered with water) situate in the parish of Pangbourne in the county of Berks and bounded on or towards the north by property belonging to the Honourable Helen Elizabeth Swinnerton Macdonald on or towards the south partly by a narrow stream or ditch which runs into the river Pang and in other part by land formerly belonging to the executors of George Boxall deceased on or towards the east by the said stream or ditch running into the said river Pang and on or towards the west by the public highway leading from Pangbourne to Tidmarsh and called the Tidmarsh Road together with the water corn mill corn granary and other buildings erected thereon or on some part or parts thereof All which premises are more particularly delineated and described in the plan drawn on a deed of conveyance dated the 1st day of September 1928 and made between William West and William Wakefield of the one part and Percy Stone of the other part and thereon coloured pink and brown Subject as to the strip of land or passage way shown on the said plan and coloured brown to the right of way and passage thereover granted to the said Helen Elizabeth Swinnerton

A.D. 1930. — Macdonald as in the said deed of conveyance mentioned and subject as to other part of the premises to the restrictive covenants as to building and user referred to in the said deed of conveyance so far as such restrictive covenants remain to be observed and performed and so far as (if at all) the same are still effectual And subject also to a covenant contained in the conveyance to the Company dated the 4th day of October 1928 that neither the Company nor their successors in title or any other persons deriving title to or interest in the said premises under or through them respectively would at any time thereafter carry on upon the said premises thereby conveyed the business of a miller or corn merchant or forage merchant.

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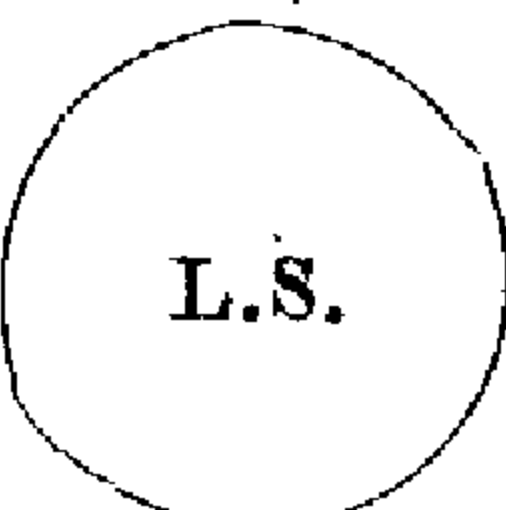
The SECOND SCHEDULE above referred to.

1. A contract dated the 27th day of March 1929 by Joseph J. Armfield and Co. Ltd. with the Company for the construction and erection of a turbine and pumps at Pangbourne Mill for the sum of £2,250 The liability of the Company in respect of this contract at the date hereof is estimated to amount to about £1,461 1s. 0d.

2. A contract dated the 18th day of April 1929 by Messrs. Francis Bros. of Tilehurst with the Company for builders' work at Pangbourne Mill on a prime cost basis The liability of the Company in respect of this contract at the date hereof is estimated to amount to a nominal sum (if any).

3. The fees and disbursements of George Lowthian the engineer of the Company in regard to the above contracts.

The common seal of the Company was hereunto }  
affixed in the presence of

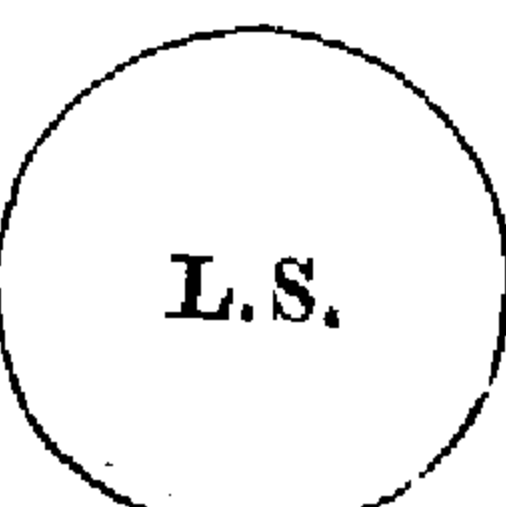


L.S.

JAS. HERBERT BENYON }  
M. WHEELER } Directors.

ALBERT BALL Secretary.

The common seal of the Corporation was hereunto }  
affixed in the presence of



L.S.

R. J. VENNER Mayor.

C. S. JOHNSON Town Clerk.

THE SECOND SCHEDULE.

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A.D. 1930.

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FORM OF DEED.

Pursuant and subject to the provisions of the Reading Corporation Act 1930 and the agreement made the 18th day of January 1930 between the Tilehurst Pangbourne and District Water Company Limited of the one part and the Mayor Aldermen and Burgesses of the borough of Reading of the other part which is set forth in the First Schedule to that Act and for the consideration mentioned in the said agreement the Tilehurst Pangbourne and District Water Company Limited hereby grant convey and assign to the Mayor Aldermen and Burgesses of the borough of Reading the undertaking property and assets of the said Company To hold the same unto the said Mayor Aldermen and Burgesses their successors and assigns and the said Mayor Aldermen and Burgesses do hereby accept the same accordingly.

In witness whereof the parties hereto have hereunto affixed their respective common seals the                      day of  
19                      .

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THE THIRD SCHEDULE.

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SECTIONS OF THE COMPANY'S ENACTMENTS  
SAVED FROM REPEAL.

The Tilehurst Pangbourne and District Water Order 1894—

Section 16 (For the protection of the Conservators of the River Thames);

Section 17 (For protection of Great Western Railway Company);

Section 18 (As to pipes crossing the works of a railway or other company);

Section 19 (Limits of pressure);

Section 20 (Rates for supply for domestic purposes);

Section 21 (Rates for waterclosets and baths).

The Tilehurst Pangbourne and District Water Order 1896—

Section 19 (For the protection of the Conservators of the River Thames);

Section 20 (Extending provisions for protection of the Great Western Railway Company);

Section 21 (As to pipes crossing the works of a railway or other company).

A.D. 1930.    The Tilehurst Pangbourne and District Water Order 1901—

Section 8    (For the protection of the Conservators of the  
River Thames);

Section 9    (Extending provisions for protection of the  
Great Western Railway Company);

Section 10   (For the protection of the Company of  
Proprietors of Whitchurch Bridge);

Section 11   (As to pipes crossing the works of a railway or  
other company).

The Tilehurst Pangbourne and District Water Company Limited  
(Modification of Charges) Order 1922—

Section 3.

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## THE FOURTH SCHEDULE.

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### PROVISIONS AS TO READING CORPORATION BONDS.

1. Bonds shall be secured on the rates and revenues of the Corporation and any moneys borrowed by means of bonds shall be principal moneys.

2. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than five years as the Corporation may determine.

3. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine and interest on bonds shall be payable half-yearly on the thirty-first day of March and the thirtieth day of September.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

4. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the office of the borough accountant on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

5.—(1) The borough accountant shall keep a register of all persons who are holders for the time being of bonds. A.D. 1930.

(2) The register shall contain the following particulars :—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided ;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be *primâ facie* evidence of any matter entered therein in accordance with the provisions of the foregoing Act and of the title of the persons entered therein as holders of bonds.

6.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect :—

No.

COUNTY BOROUGH OF READING.

Reading Corporation Bonds.

per centum Reading Corporation bond repayable at par  
19 at the

This is to certify that of  
is the registered holder of a Reading Corporation bond for  
pounds (£ ) issued by the mayor aldermen and burgesses  
of the borough of Reading under the Reading Corporation Act  
1930 at

Signed

Borough Accountant.

Date

A.D. 1930.

7. The certificate shall be *primâ facie* evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

8.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect :—

## FORM OF DEED OF TRANSFER.

## Reading Corporation Bonds.

I  
in consideration of the sum of  
paid by  
(hereinafter called “the transferee”) do hereby assign and  
transfer to the transferee :—

To hold unto the transferee his executors administrators and  
assigns subject to the several conditions on which I held the  
same immediately before the execution hereof and I the trans-  
feree do hereby agree to accept and take the said  
subject to the conditions aforesaid.

As witness our hands and seals this                      day of  
in the year of our Lord one thousand nine  
hundred and

(2) A bond may be transferred in whole or in part so however  
that any part transferred shall not be for an amount other than  
an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by  
the Corporation and the Corporation shall enter a note thereof in  
a book to be called the “ Register of transfers of Reading Corpora-  
tion bonds ” and shall endorse on the deed of transfer a notice  
of that entry.

(4) The Corporation shall upon receipt of the deed of transfer  
duly executed and properly stamped together with the certificate  
issued in respect of the bond enter the name of the transferee in  
the register and shall issue a new certificate or certificates to the  
transferee or to the transferor and transferee as the case may  
require.

(5) Until the deed of transfer and the certificate have been  
delivered to the Corporation as aforesaid the Corporation shall  
not be affected by the transfer and the transferee shall not be  
entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer. A.D. 1930.  
—

9. The Corporation may close the register for a period not exceeding thirty days immediately before the thirty-first day of March and the thirtieth day of September in any year respectively and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the half-yearly payment of interest next falling due may be made to the persons registered as holders of bonds on the date of the closing of the register.

10.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation they shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

11.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

12. The Corporation shall not be required to pay any executors or administrators any interest on bonds held by their testator or intestate until the probate of the will or the letters of administration has or have been left with the Corporation for registration.

13. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

14. Where more persons than one are registered as joint holders of a bond any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them.

A.D. 1930.

15. No notice of any trust shall be entered in the register or in any other book kept by the Corporation or be receivable by the Corporation.

16.—(1) If at any time any interest due on any bonds remains unpaid for two months after demand in writing the person or persons entitled thereto may apply to the High Court for the appointment of a receiver and the court may if it thinks fit appoint a receiver on such terms as it thinks fit.

(2) The receiver shall have the like power of collecting receiving recovering and applying moneys and of assessing making and recovering all rates for the purpose of obtaining the same as the Corporation or any other officer thereof would or might have and such other powers and duties as the court thinks fit and shall apply all moneys so collected and received after paying all such costs as the court may direct for the purposes of this Act.

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